

25STCV00958 25STCV00958

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-07-28

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Plaintiff Monica Taormina's motion for terminating sanction
or in the alternative issue and evidentiary sanction against Defendants Ma
Veneranda R. Braganza ESA Mavi Braganza and Robert Vergara ESA Robert Braganza
and for monetary sanctions

Plaintiff seeks an order for terminating sanctions or
alternatively issue and evidence sanctions against Defendants, as well as monetary
sanctions against Defendants and counsel, based on Defendants' failure to
comply with the Court's prior discovery orders. Plaintiff seeks monetary sanctions of
\$5,623.41 against Defendants and counsel, jointly and severally.

On 12/9/2025, the Court granted Plaintiff's motion to compel
responses to form interrogatories from Defendant M. Braganza and Plaintiff's
motion to deem RFAs admitted by M. Braganza, and the Court also ordered
sanctions of \$1,798.41 as to each of the motions against M. Braganza and
counsel, to be paid within 30 days.

On 6/15/2026, the Court granted Plaintiff's motion to compel
responses to form interrogatories from Defendant R. Vergara, motion to compel responses
to document requests from Defendant R. Vergara, and Plaintiff's motion to deem
RFAs admitted by R. Vergara, and the Court also ordered sanctions of \$1,123.41
as to each of the motions against R. Vergara and counsel, to be paid within 30
days.

Defendants contend that they have now served "complete"
verified responses to the form interrogatories and document requests, and paid
the sanctions, and thus no basis exists for terminating, issue, or evidence
sanctions. Defendants also request that the Court reduce any monetary sanctions

awarded.

The Court has reviewed Defendants' responses to the form interrogatories, and R. Vergara's responses to the document requests, which are the discovery requests at issue in this Court's prior discovery orders. The responses do not, unfortunately, consist of "complete" verified responses as promised by counsel.

M. Braganza improperly fails to respond to all the subparts of form interrogatories nos. 12.1, 12.3, 12.7, 14.2, and 15.1. R. Vergara improperly fails to provide any response to nos. 2.6, 15.1, 16.1, and 16.2, and for several other interrogatories fails to provide any responsive information on the grounds that he "does not own the property." These extremely late responses therefore are incomplete.

R. Vergara's responses to the document requests are not code compliant. He states that he does not have responsive documents to most of the requests, but does not complete the answer as required under CCP Section 2031.230, which requires a responding party to explain why the party does not have responsive documents.

Defendants cannot credibly argue to this Court that further sanctions are not warranted when even their extremely late responses are still riddled with evasive and incomplete responses. The Court concludes that further sanctions are warranted given Defendants' continued refusal to fully and completely comply with its discovery orders, though the fact that Defendants have provided responses (albeit deficient) militates against terminating and issue sanctions.

The RFAs have already been deemed admitted against Defendants. These RFAs will enable Plaintiff to establish most, if not all the elements of her claims. Given that Defendants have continued to fail to respond fully to form interrogatory no. 15.1 regarding affirmative defenses, the Court issues an evidence sanction excluding any evidence supporting any of Defendants' affirmative defenses. The Court also issues an evidence sanction precluding R. Vergara from introducing any exhibit responsive to any of the document requests to which he answered that he has no such documents. The Court also issues an evidence sanction against M. Braganza precluding her from calling any witness who did repair work on Plaintiff's unit, including any contractor, or was involved with correcting a citation from Long Beach, given her continued failure to respond fully to form interrogatories 12.1, 12.3, 12.7, and 14.2. The Court also exercises its discretion to

impose additional monetary sanctions in the amount of \$5,623.41 against Defendants and counsel, jointly and severally. Those sanctions are ordered to be paid to Plaintiff's counsel within 14 days of this order.